

DEPARTMENT OF VETERANS AFFAIRS

**SOLE SOURCE JUSTIFICATION UNDER SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL
ITEMS IN ACCORDANCE WITH Revolutionary FAR Overhaul (RFO) FAR 12.201-1**

Acquisition Plan Action ID: 36C261-26-AP-2853

JOFOC Log Number: FY26 - NCO 21 – 0756

1. **Contracting Activity:** Department of Veterans Affairs (VA), Veterans Health Administration (VHA), Regional Procurement Office West (RPOW), Network Contracting Office (NCO) 21 on behalf of the VA Southern Nevada Healthcare System (VASNHCS), 6900 North Pecos Road, North Las Vegas, Nevada, 89086.

VA2237: 593-26-3-577-0055

2. **Nature and/or Description of the Action Being Processed:** This procurement is for a Sole Source firm fixed price (FFP) Purchase Order in accordance with RFO FAR 12.201-1 Simplified Procedures for Certain Commercial Items and specifically RFO FAR 12.102 Restricting competition, where acquisitions conducted under Simplified Acquisition Procedures are exempt from the requirements of RFO FAR Part 6, but still require a justification using the format of RFO FAR 6.104. Also, RFO FAR 12.102(b), where acquisitions valued over the Simplified Acquisition Threshold require a justification using the format of RFO FAR 6.104.
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** This procurement is for the contractor to provide and install electronic server switches, connection, and programming management control for this electronic system upgrade. Contractor will procure, install and program 46 server switches in 20 locations identified in the Statement of Work. Connections will be accomplished in Information Technology (IT) closets, server racks, between multiple floors and several buildings and be compatible with the existing system. The programming management control is proprietary to the sole contractor, Arctiq US, Inc., who provides tracing, troubleshooting, and system monitoring features essential for supporting the medical center's electronic systems and components. The contractor shall provide training, technical support, service call response, server maintenance and warranty to the awarded items. This electric infrastructure upgrade supports facilities that are foundational to supporting medical, utility and emergency operations for the Veterans of the Las Vegas VA Medical Center (VAMC).

The Independent Government Estimate (IGCE) is [REDACTED]

4. **Statutory Authority Permitting Restricted Competition:**
RFO FAR 12.201, Simplified Procedures. The statutory authority for applying the Simplified Procedures for Commercial Items of FAR 12.201 is 41 U.S.C. § 1901 and is implemented by RFO FAR 12.102(b) for restricting competition on this procurement. **Competition is restricted on this procurement for the reason below:**

- (X) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements
- () Unusual and Compelling Urgency

Effective Date: 12/30/2025

Revision: 02

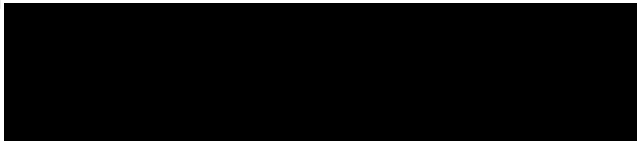
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- () Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services
- () International Agreement
- () Authorized or Required by Statute
- () National Security
- () Public Interest

5. **Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):** Phase 1 of the electric infrastructure upgrade was competed and awarded to Small Business, Arctiq US, Inc. (formerly known as Dyntek Services, Inc.) under contract 36C26125P1474. Arctiq US, Inc. is the sole authorized distributor and service provider in the Las Vegas area for Access Technologies Group server switches required due to compatibility due to proprietary rights.
6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:** As noted above, due to proprietary rights no other company is authorized to sell or service the servers purchased from Access Technologies Group. The items required for this requirement shall be compatible with the items purchased from the previous award which were also for Las Vegas VAMC.
7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:** The Contracting Officer anticipates fair and reasonable pricing will be received for this requirement. Pricing received will be compared to the previous award, 36C26125P1474, as well as comparison to other quotes received for the previous acquisition and other established contracts in accordance with RFO FAR 12.204(a).
8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** As noted in section 6, proprietary rights limit competition for compatible items and maintenance. The station and contracting office will continue to monitor to see if the manufacturer decides to have authorized distributors and service providers.
9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** There are no other facts to support the use of full and open competition.
10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:** Arctiq US, Inc., 8 Cadillac Dr STE 250, Brentwood, TN 37027.
11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** The market will be continually assessed to determine if other vendors can provide the required supplies and services supporting VA Southern Nevada Healthcare System territory.

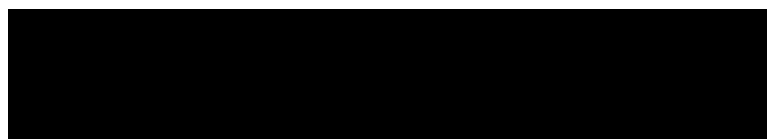
- 12. Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief



LeShean Lawson
Chief of Operations
Southern Nevada VA Medical Center

13. Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):

- a. **Contracting Officer or Designee's Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.



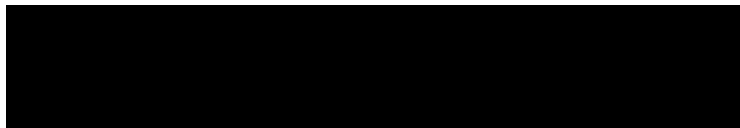
Amanda J. Hildreth
Contracting Officer, Supply II
Network Contracting Office 21

- b. **One Level Above the Contracting Officer (Required over \$350K but not exceeding \$900K):** I certify the justification meets requirements for other than full and open competition.



Nicholas Kluch
Director of Contracting
Network Contracting Office 21

- c. **VHA Advocate for Competition and RPO HCA Review and Approval:** I have reviewed the foregoing justification and find it to be complete and accurate to the best of my knowledge and belief and approve \$900K to \$90 million for other than full and open competition.



Curtis M. Jordan
Executive Director, Regional Procurement Office West
Head of Contracting Activity (HCA)